

CITATION: THI LE-THU MAC v. THI LE and LOI VAN LY, 2011 ONSC 645
COURT FILE NO.: CV-06-317978
DATE: 20110126

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: THI LE-THU MAC, Plaintiff/Respondent
and
THI LE and LOI VAN LY, Defendant/Appellant

BEFORE: Justice Newbould

COUNSEL: Robert D Moss, for the defendant/appellant
Isabelle Loffredi, for the plaintiff/respondent

DATE HEARD: January 26, 2011

ENDORSEMENT

[1] The defendants appeal from an order of Master Short dated October 19, 2010 in which he dismissed a motion by the defendants to permit an examination of the plaintiff by a psychiatrist named Dr. Soric.

[2] The action arises out of a claim for personal injury sustained in a motor vehicle accident that occurred in 2004. The plaintiff claims damages of \$1 million based on allegations that she has sustained permanent and serious injuries including a number of injuries to various parts of her body as well as other claimed damages, including chronic pain syndrome.

[3] The plaintiff has served a number of expert reports, including reports from two orthopedic surgeons, a psychiatrist, a neurologist and a psychologist. The first report from the plaintiff's psychiatrist, Dr. Wong, on April 18, 2006 referred to his opinion that the plaintiff suffered chronic pain syndrome. A report from Dr. Ogilvie- Harris, an orthopedic surgeon, of

March 31, 2008 referred to the plaintiff having developed the characteristic features of a chronic pain syndrome.

[4] On consent, without court order, the plaintiff was assessed by Dr. Hugh Cameron, an orthopedic surgeon, on September 9, 2009. Dr. Cameron delivered a report dated September 11, 2009 dealing with the physical injuries suffered by the plaintiff. In that report he opined that the injuries sustained by the plaintiff have not resulted in a permanent and serious impairment of an important physical function.

[5] The Master was influenced by the fact that Dr. Cameron did not indicate in his report the need for another expert to deal with the chronic pain claim. He also said he was not satisfied that Dr. Cameron lacked an appropriate level of experience or knowledge to deal with it and that while Dr. Cameron's 40 page curriculum vitae did not highlight claimed expertise in the area, he would have expected that Dr. Cameron would have filed an affidavit acknowledging any such limitations on his ability to comment.

[6] The appropriate standard of review from an order of a Master is set out in the decision of *Zeitoun v. Economical Insurance Group* (2008), 91 O.R. (3d) 131 (Div.Ct.); aff'd 96 O.R. (3d) 639 (C.A.). The standard of review on appeal from a Master is the same as the standard of review on an appeal from a judge, as set out in *Housen v. Nikolaisen*, [2002] 2 S.C.R. 235. The decision will be interfered with only if the Master made an error of law or exercised his or her discretion on the wrong principles or misapprehended the evidence such that there is a palpable and overriding error.

[7] In my view, the Master effectively erred in law and exercised his discretion on wrong principles. I say this for the following reasons.

[8] It is not, in my view, the purview of an expert retained on behalf of a party to decide whether some other expert should be retained to support the party on whose behalf he or she was retained. That is the traditional role of a party and the solicitors for that party. Indeed, an expert is not to be an advocate for the party retaining that expert. There is nothing, of course, wrong for an expert asked to provide an opinion to say that the opinion is outside of his or her expertise,

and that for that reason someone else should be retained. That is not the case here. Dr. Cameron felt qualified to deal with the physical injuries sustained by the plaintiff and to provide his opinion regarding that. The fact that Dr. Cameron did not indicate the need for a physiatrist to examine the plaintiff to deal with the claim for chronic pain syndrome is no reason, in my view to deny a request that a physiatrist examine the plaintiff. To hold that there had to be an opinion from Dr. Cameron that a physiatrist was required was acting on a wrong principle and an error in law.

[9] It is common ground that Dr. Cameron did not deal with the issue of whether the plaintiff suffers from chronic pain syndrome. Dr. Ogilvie-Harris in his report of October 26, 2009 referred to Dr. Cameron's report of September 11, 2009 and stated that Dr. Cameron had considered the mechanical aspects of the plaintiff's injury but had not dealt with the issue of a chronic pain syndrome. This is not a case in which Dr. Cameron opined on the chronic pain syndrome and the defendant is now seeking to have another examination by someone else on that issue.

[10] Whether Dr. Cameron was qualified to provide an opinion on chronic pain syndrome is thus, in my view, of little importance, as he did not do so. In any event, I have considerable difficulty with the Master's statement that he was not satisfied that Dr. Cameron lacked the appropriate experience or knowledge to opine on the claim based on a chronic pain syndrome. He had no basis to conclude that Dr. Cameron had such expertise, particularly when such expertise could not be gleaned from Dr. Cameron's 40 page curriculum vitae. While it would have been possible for Dr. Cameron to state in an affidavit that he lacked the expertise to deal with that chronic pain syndrome claim, I do not see a lack of such an affidavit permitting a conclusion that Dr. Cameron had the appropriate expertise. It was an error in principle and in law to so conclude.

[11] There is an important factor in this case that was not dealt with by the Master. In his reply report of October 26, 2009, Dr. Ogilvie-Harris said he agreed with Dr. Cameron that from a purely mechanical point of view the injuries of the plaintiff have largely healed. Thus, apart from the psychological injuries that the plaintiff claims to have incurred, it would appear that a

major, if not the major, issue so far her damages are concerned is whether the plaintiff has experienced a chronic pain syndrome. If the defendant is not able to have a physiatrist examine the plaintiff and provide an expert report, the trier of fact, in this case a jury, will have only the opinion of the plaintiff's physiatrist Dr. Wong. Ms. Loffredi acknowledged such in argument. This would be an entirely unsatisfactory state of affairs, particularly as a chronic pain syndrome cannot normally be objectively seen. It was an error in principle and in law for the Master not to consider this issue.

[12] If in October 2009, after receiving all of the plaintiff's expert reports, the defendant had requested not only that Dr. Cameron and Dr. Wyndowe, the psychiatrist, examine the plaintiff but also have a physiatrist examine her, I do not see how there could have been any objection by the plaintiff to this taking place. Each of the three persons would have been dealing with a separate issue. While the defendant could have, and perhaps in hindsight should have, made such a request at that time, the fact that the request is only coming now is not of great moment. The trial is not scheduled to be held until September, 2011.

[13] The plaintiff relied on a number of decisions in which a medical examination was refused, and Master Short referred to them in his endorsement. I do to see these decisions as laying down any immutable principle, but rather decisions of judges exercising their discretion on the particular facts of the case before them. All involved somewhat different facts and none can be said to be binding.

[14] In the circumstances, the appeal is allowed and the order of Master Short is set aside. In its place it is ordered that the plaintiff attend a defence medical assessment with Dr. Soric on February 17, 2011 at 4 p.m.

[15] At the conclusion of his endorsement, Master Short ordered that the authors of the expert reports being filed for use at trial have annexed to them the written acknowledgment of their responsibilities and that a form 53 be completed for each report. The defendant says the Master should not have ordered a form 53 to be filed as it would take away the discretion of the trial judge regarding the filing of expert reports that did not comply with the rule. I see no error for

the Master to order the forms to be completed and no purpose in not having them filed. There was no reversible error in making that order.

[16] The defendants are entitled to their costs on a partial indemnity basis. If the quantum is not agreed short written submissions may be made by the defendants within 10 days with a cost outline and the plaintiff shall have 10 further days to respond.

Newbould J.

DATE: January 26, 2011